

Court No. - 3

Case :- WRIT - C No. - 1046 of 2024

Petitioner :- Nagesh Pati Tripathi

Respondent :- State Of Up And 5 Others

Counsel for Petitioner :- Parmendar Singh, Kumar Anish, Mayank Pranjali

Counsel for Respondent :- C.S.C., Sushil Kumar Pandey

Hon'ble Anjani Kumar Mishra, J.

Hon'ble Jayant Banerji, J.

1. Counsel appearing for the respondent nos. 5 and 6 is directed to obtain the complete instructions by the next date fixed.

2. Put up as fresh after a week.

Order Date :- 30.1.2024

A. V. Singh

Chief Justice's Court

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Respondent :- State Of Up And 5 Others

Counsel for Petitioner :- Parmendar Singh, Kumar Anish, Mayank Pranjali

Counsel for Respondent :- C.S.C., Sushil Kumar Pandey

Hon'ble Arun Bhansali, Chief Justice

Hon'ble Manoj Kumar Gupta, J.

1. Heard Shri Parmendar Singh, learned counsel for the petitioner and Shri Sushil Kumar Pandey, learned counsel for respondent nos. 5 and 6.
2. Petitioner is aggrieved of the recovery notice dated 01.06.2023 modified by notice dated 23.11.2023 issued by Tehsildar Gyanpur, District Bhadohi.
3. Submissions have been made seeking to dispute the quantum of the bills raised by the respondents.
4. A perusal of the record indicates that though the petitioner has remedy under Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005, the petitioner has not approached the respondents in this regard.
5. In view of above fact and situation, the petitioner may approach the respondents under Clause 6.5 of the Code within a period of two weeks. On petitioner filing proceedings under the said provision, it is required of the respondents to pass an appropriate order in accordance with law within a period of three weeks thereafter, after providing opportunity of hearing to the petitioner.
6. With the above directions, the petition stands **disposed of**.
7. Till the time, the proceedings under Clause 6.5 of the Code are decided by the Authority, the demand raised shall not be enforced against the petitioner.

Order Date :- 13.2.2024

Brijesh Maurya

(Manoj Kumar Gupta, J.)

(Arun Bhansali, C.J.)